PARLIAMENT OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

NATIONAL HERITAGE WILDERNESS AREAS ACT, No. 3 OF 1988

[Certified on 4th March, 1988]

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AN ACT TO MAKE PROVISION FOR THE DECLARATION OF NATIONAL HERITAGE WILDERNESS AREAS ; FOR THE PROTECTION AND PRESERVATION OF SUCH AREAS ; AND FOR MATTERS CONNECTED THEREWITH OR INCIDENTAL THERETO.

BE it enacted by the Parliament of the Democratic Socialist Republic of Sri Lanka as follows

1. This Act may be cited as the National Heritage Wilderness Areas Act, No. 3 of 1988. Short title,.

2. (1) For the purpose of preserving in their natural state, unique eco-systems, genetic resources ; or physical and biological formations and precisely delineated areas which constitute the habitat cAf threatened species of animals and plants of outstanding universal value from the point of view of science or conservation ; for enhancing the natural beauty of the wilderness of Sri Lanka and for promoting the scientific study and enjoyment thereof by the public, the Minister may, after consultation with— Declaration of National Heritage Wilderness Areas.

(a) the Minister in charge of the subject of Environment ;

(b) the Minister in charge of the subject of Wild Life Conservation ;

(c) the Minister in charge of the subject of Fisheries ;

(d) the Minister in charge of the subject of Agriculture ;

(e) the Minister in charge of the subject of Cultural Affairs ; and

(f) the Minister in charge of the subject of Indigenous Medicine,

by Order published in the Gazette, declare any area of State land which in his opinion has unique eoo-systems. genetic resources or any outstanding natural features, to be a National Heritage Wilderness Area.

(2) No Order made under subsection (1) shall have effect until it is approved by the President and confirmed by Parliament and notification of such approval and confirmation is published in the Gazette.

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(3) Every area to be declared as a National Heritage Wilderness Area shall be identified and mapped out by the Surveyor-General and any Order made under subsection (1) shall refer to the map prepared by the Surveyor-General in respect of the area to which such Order refers.

(4) Where any immovable property not being State land, with any of the features referred to in subsection (1) is required to be acquired for the purposes of this Act, and the Minister shall by Order published in the Gazette approve of that proposed acquisition, that property shall be deemed to be required for a public purpose and may accordingly be acquired under the Land Acquisition Act.

Restriction of entry into National Heritage Wilderness Areas.

3. (1) No person other than the Competent Authority shall enter, or remain, within, any National Heritage Wilderness Area except—

(a) for the purpose of discharging any official duty on the instruction, or with the written permission,' of the Competent Authority ; or

(ii) under the authority and in accordnace with the conditions of a written permit from the Competent Authority.

(2) A permit referred to in paragraph (b) of subsection **(1)** shall be issued by the Competent Authority on an application made therefor, only for the purpose cAZ observing the fauna or flora therein or for conducting such scientific studies as are specified in such permit.

Acts prohibited **in** National Heritage Wilderness Areas.

4. (1) No person shall in a National Heritage Wilderness Area—

(a) cut, mark, lop, girdle, saw, convert, collect or remove any plant, tree or any part thereof or any other forest produce ;

(b) wilfully strip off the bark or leaves from, or otherwise damage or interfere with, any tree ;

(c) cut grass or pasture cattle ;

(d) pollute water ;

(e) remove, uproot or destroy, or cause any damage or injury to, any plant ;

(f) sell, expose or offer for sale, any plant ;

(g) shoot, trap or snare, molest or disturb, any bird or animal

(h) sell, expose or offer for sale, any bird, beast or reptile or any part of any such bird, beast or reptile ;

(i) take or destroy any egg of any bird or ,reptile or nest of any bird ;

(j) fire any gun or do any other act which disturbs or is likely to distrub, any wild animal or do any act which interferes, or is likely to interfere with, the breeding place of any such animal ;

(k) possess or use any trap or any explosive or poisonous substance capable of being used for the purpose of injuring or destroying any animal or plant ;

(1) erect any building, whether permanent or temporary, or occupy any building so erected

(in) make any fresh clearing ;

(n) kindle or keep or carry any fire ;

(o) remove any forest produce in any form ;

(p) clear or break up any land for cultivation or any other purpose ;

(q) construct any road ; or

(r) damage, alter or remove: any wall, ditch, embarkment, fence, hedge. railing or other boundary mark.

(2) Nothing in paragraph (1) of subsection (1) shall be read or construed as prohibiting the Competent Authority; from erecting and occuping any building within National Heritage Wilderness Area, for the purposes of this Act.-

Regulations.

5: (1) The Minister may make regulations in respect of—

(a) the administration and management of National Heritage lArildernes Areas ;

(b) the implementation of the co-ordinated management plan prepared under section 10 in respect of a National Heritage Wilderness Area ; and

(c) every matter which is required by this Act to be pres cribed or in respect of which regulations are required or authorized to be made.

(2) Every regulation made by the Minister shall be published in the *Gazette* and shall come into operation on the date of publication or on such later date as may be specified in the regulations.

(3) Every regulation made by the Minister shall as soon as convenient after its publication in the Gazette be brought before Parliament for approval.

(4) Any regulation which is not so approved shall be deemed to be rescinded as from the date of disapproval but without prejudice to anything previously done thereunder.

(5) The date on which any regulation shall be deemed to be so rescinded shall be published in the Gazette.

Nothing in this Act to effect the exercise, discharge or performance of any power, function or duty of a member of the Armed Forces and the Police Force.

6. Nothing in this Act shall effect the exercise. discharge or performance by a member of the Armed Forces or the Police Force, of any power function or duty conferred or imposed on, or assigned to, such member by any written law •

Provided that where a member of the Armed Forces or the Police Force in the exercise, discharge or performance cf any such power, function or duty commits any of the acts prohibited by this Act within any National Heritage Wilderness Area, it shall be the duty of the Competent Authority to take such steps as are necessary against such acts.

The Conservator of Forests to be the Competent Authority.

7. The Conservator of Forests shall be the Competent Authority for the purposes of this Act.

Duty of the Competent Authority.

8. Notwithstanding anything in contrary to any other law, the Competent Authority shall in relation to a National Heritage Wilderness Area, be charged with the duty of—

(a) discharging the functions assigned t0 him by the provisions of this Act and